

Court No. - 39

Case :- WRIT - C No. - 18738 of 2023

Petitioner :- Brij Kishor

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi, Akhilesh Kumar Pandey

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

Shri Pranjal Mehrotra representing the respondent nos. 1 to 3 prays for and is granted two weeks' time to obtain instructions in the matter.

Put up again as fresh on **4.7.2023** before appropriate Bench.

The case shall not be treated as tied-up or part heard to this Bench.

Order Date :- 30.5.2023

IB

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2 Others

Counsel for Petitioner :- Shreesh Bahadur Tripathi, Akhilesh
Kumar Pandey

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Shri Pranjal Mehrotra, learned counsel for Electricity Department.

The petitioner has preferred this writ petition with prayer to direct the respondents to give new connection to the petitioner in his premises being House no.1243 Mohalla Holiwala Hasanpur, Amroha (J.P. Nagar) without waiting for outcome of partition Suit bearing O.S. No.153/2020, which was preferred by the ancestral of the petitioner.

Sri Pranjal Mehrotra, learned counsel for Electricity Department submits that there is outstanding dues of electricity over the plot in question and as per Clause 4.3 of U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided. He submits in case petitioner approaches the competent authority i.e. second respondent, definitely the same would be considered as per provision 6.14 of U.P. Electricity Supply Code 2005.

Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is ***disposed off*** asking the petitioner to approach competent authority ventilating all his grievance by moving a proper application. In case any such application is moved by the petitioner, we hope and trust that the same would be considered and final decision would be taken by the competent authority expeditiously, keeping in mind provision 6.14 of U.P. Electricity Supply Code 2005.

Order Date :- 4.7.2023

A. Pandey